



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-79 | Tracts 3 and 4, Sunny Side Addition – Zoning Map Amendment
Date: June 10, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 06/10/2024
- Public Services Committee 06/18/2024
- Second reading 06/24/2024
- Public Services Committee 07/02/2024
- Third and final reading 07/08/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their June 3, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS TO CB COMMUNITY BUSINESS FOR LAND LOCATED NORTHEAST OF THE INTERSECTION OF CHEYENNE STREET AND RIDGE ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 3, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Tracts 3 and 4, Sunny Side Addition, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

JUNE 3, 2024

STAFF REPORT

FILE: UDC-24-79: 3423 Ridge Road – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 4.07 acres of land from MUB Mixed-use Business to CB Community Business.

LOCATION: East of and adjacent to Ridge Road between Charles St. and Cheyenne St.

APPLICANT: Western Equities, LLC

AGENT: Casey Palma, Palma Land Planning

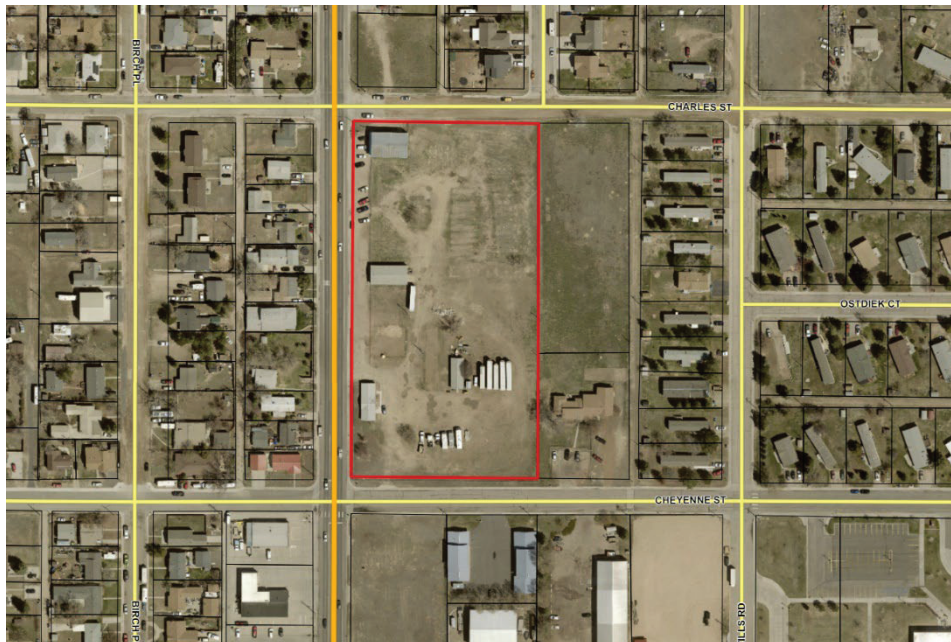
OWNER: Zola Hedrick

ZONING: Mixed-use Business

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To allow for accommodate a commercial development masterplan for the parcel.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of Tracts 3 and 4, Sunny Side Addition to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business to CB Community Business for roughly 4.07 acres of land. The land is currently vacant. The applicant is proposing a commercial development with multiple uses.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	MUB Mixed-use Business	Vacant
North	Urban Residential	MR Medium-density Residential	Single-family
South	Mixed-use Commercial	CB Community Business / MUB	Commercial
East	Urban Residential	CB / MR	Vacant / Multi-family
West	Urban Residential	MR	Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development.

The Future Land Use Designation for this property is Mixed-use Commercial Emphasis. This category includes a wide variety of land uses and activities, focused primarily on commercial activities, but also including other employment, public, and residential uses. Although the

'optimal' zone for this designation is considered MUB, the future land use designation does support the CB zone as it is a zone that is primarily for commercial uses.

This property is near to the intersection of College and Pershing, which is designated as a mixed-use commercial activity center which encourages multi-neighborhood commercial uses. The types of businesses encouraged at these types of activity centers often include people traveling from a distance, and therefore the more automobile-oriented CB zoning is appropriate.

Based on the policies and future land use map, CB zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

There is CB zoning to the south and the east of this property. The surrounding area consists of a mix of different residential and service uses. The CB zone would be compatible with the nearby properties as it is a commercial zone with similar use allowances, but with different design standards than the MUB zone.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The surrounding area better matches the expected development patterns of CB zoning. The MUB zone requires buildings to be set closer to the streets and have a certain amount of windows and other building design elements, whereas the CB zone pushes buildings further from the street and requires fewer building design elements. The CB zone is also meant for more vehicle-oriented areas which would be the case for Ridge Road.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

This is in an area with an existing street network. The CB zone generally anticipates larger blocks and is better suited to the likely development patterns in this situation.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary

needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas.

The CB District is applicable in areas where moderate- or large-scale business uses are appropriate, specifically larger Mixed-use Commercial Activity Centers, Community/Regional Activity Centers, or Community Business areas of the Comprehensive Plan.

This property is in a Mixed-use Commercial Activity Center, adjacent to Ridge Road and is planned to be a multi-use parcel with more auto oriented businesses.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific proposal is for a potential car wash. However, if that project is not executed after approval, the CB zone offers a wide variety of potential auto-oriented uses at this site (including apartments).

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major concerns were raised by other reviewing bodies. A general comment was provided but will be taken care of during development of the property.

“Construction of Charles St. adjacent is expected for any further development applications.”

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the CB zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

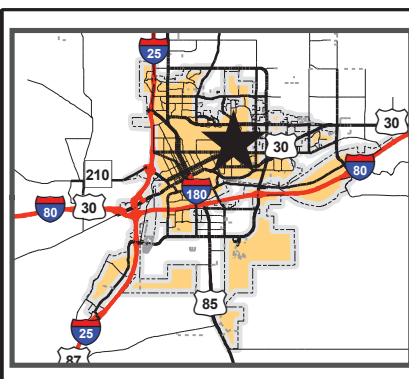
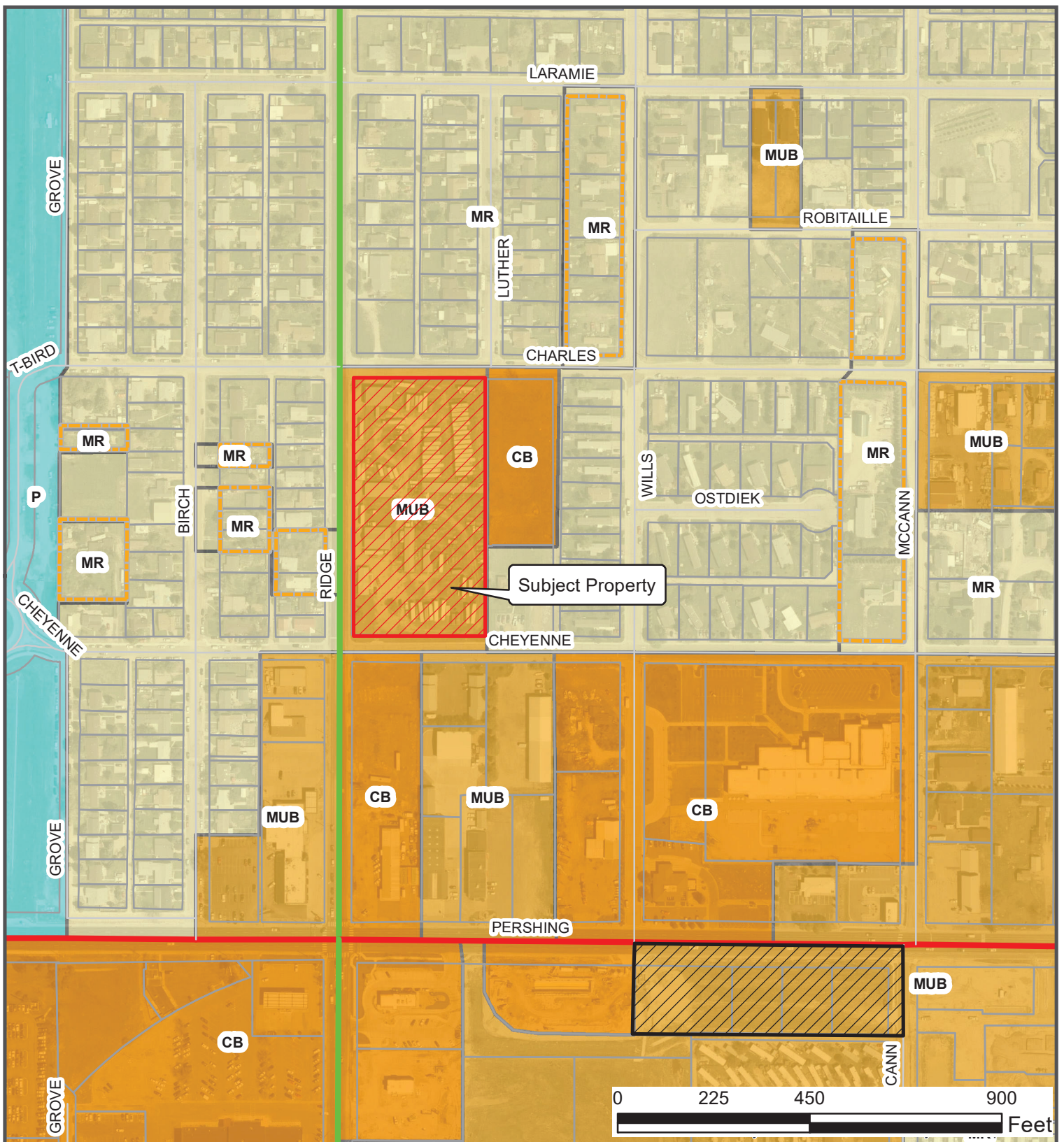
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB to CB.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Differences in uses per zone

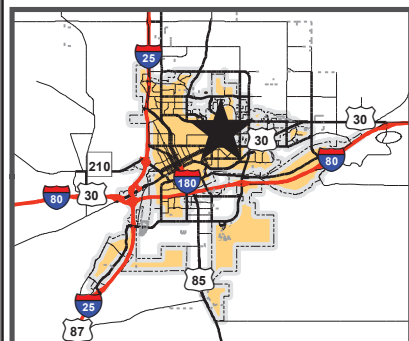
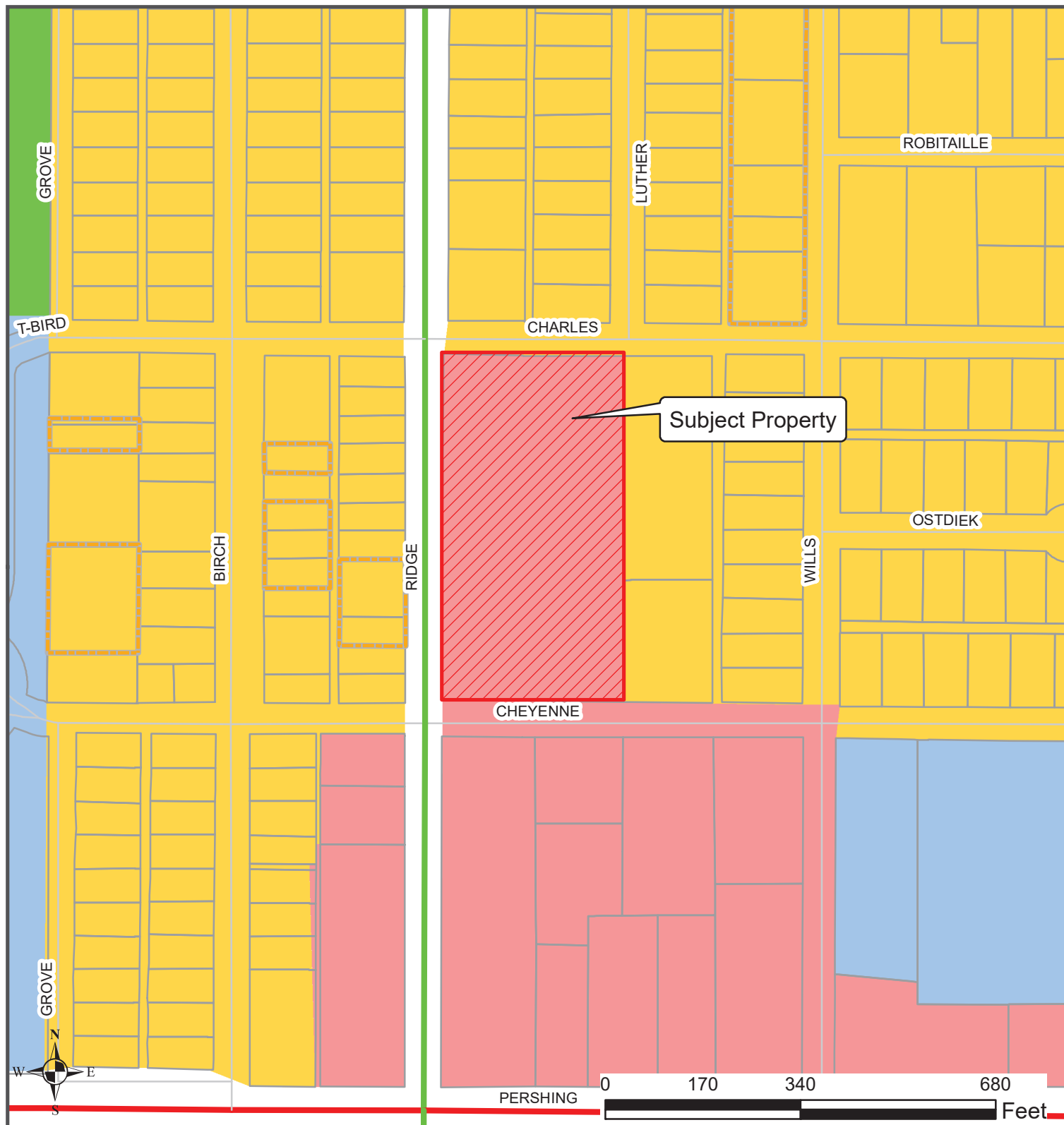


Attachment 1: Zoning Map PUDC-24-79

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-79

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

5/16/2024

PUDC-24-79

Zoning Map Amendment

Status: Active

Submitted On: 5/6/2024

Primary Location

3423 RIDGE RD

Cheyenne, WY 82001

Owner

HEDRICK, ZOLA MAE

3415 RIDGE RD CHEYENNE,
WY 82001

Applicant

Casey Palma

307-996-8281

casey@plandesignwy.com

 1775 Goodnight Trail
Suite 210
Cheyenne, WY 82007

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name*

RMCW Commercial Master Plan

Proposed Zoning*

CB Community Business

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

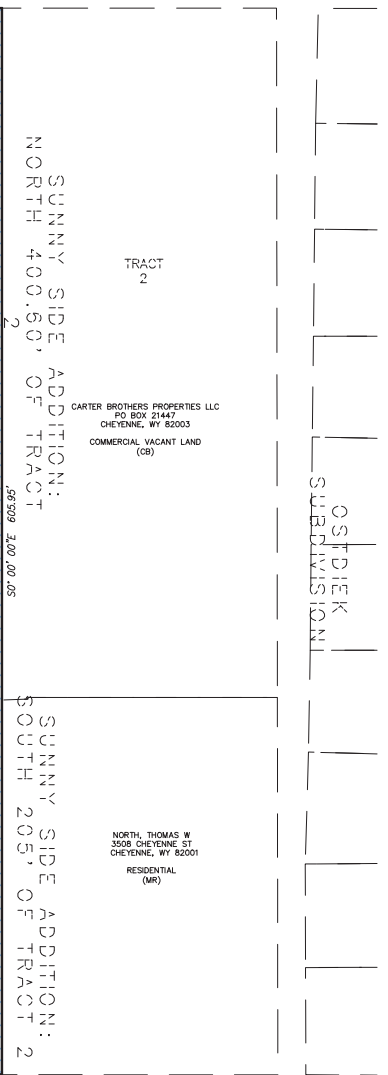
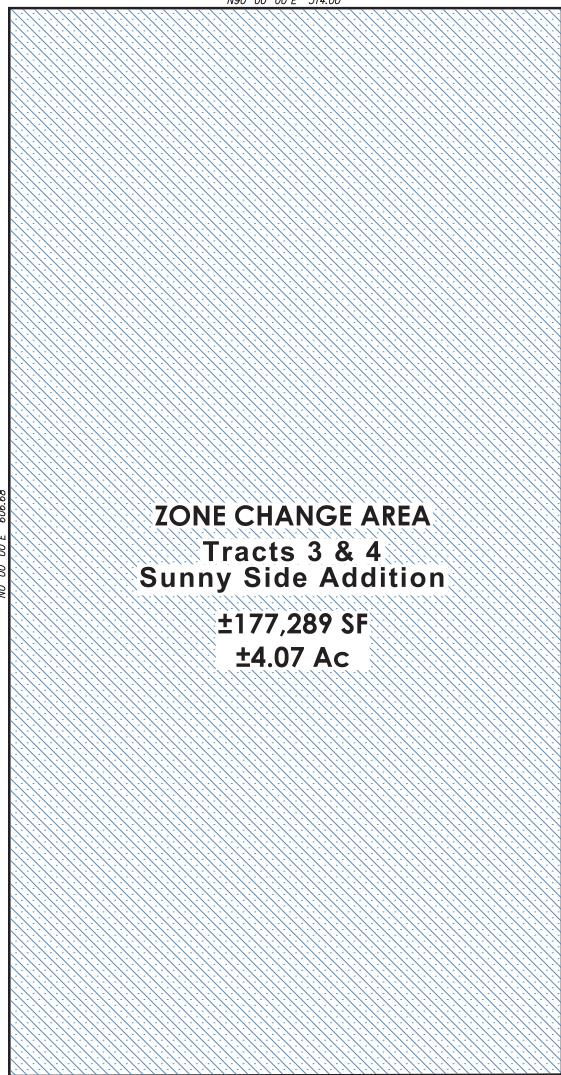
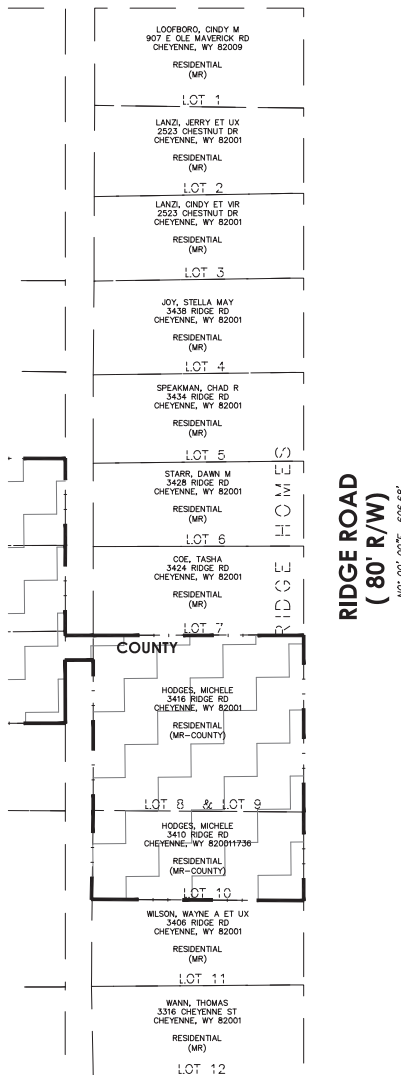
Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

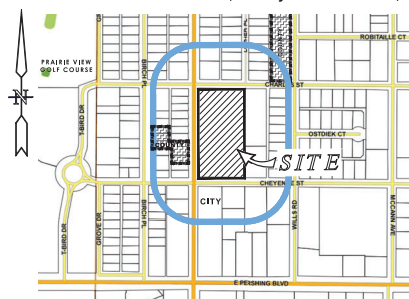
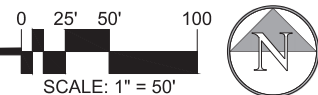
I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

- ✔ Casey L. Palma, AICP for Palma Land Planning, LLC
May 6, 2024



Zone Change Map

Tract 3 & 4, Sunny Side Addition, City of Cheyenne, Laramie County, WY



Vicinity Map

N.T.S.

Property Information

Legal Description: Tracts 3 & 4, Sunny Side Addition
 Property Owner: Hedrick, Zola Mae
 Property Current Address: 3423 Ridge Rd, 82001
 Proposed Use: Commercial Development (multiple) - Shared Access
 Existing Zoning: MUB - Mixed-Use Business-Emphasis
 Proposed Zoning: CB - Community Business
 Future Land Use Plan Designation: MUC - Mixed-Use Commercial
 Property Area: ±177,289 SF | ±4.07 Ac

Note

This map was developed from publicly available record data.

PALMA
 Land Planning
 SITE & SUBDIVISION DESIGN
 ZONING | LANDSCAPE ARCHITECTURE

1775 Goodnight Trail, Suite 210 | Cheyenne, WY 82007
www.PlanDesignWY.com

Prepared: May 2024

MUB - MIXED-USE BUSINESS
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling (“Duplex”)
Attached Dwelling (“Townhouse”)
Cottage Lots
Dormitories
Multi-dwelling Building (“Apartment”)
Live/Work
Mixed-use Dwelling
Urban Loft Building
Service Business - Limited
Assisted Living / Nursing Home
Child Care, In Home - Minor
Child Care, In Home - Major
Child Care, Center - Minor
Child Care, Center - Major
Entertainment, Indoor Recreation Facility
Lodging, Bed and Breakfast
Lodging, Hotel / Motel
Medical Care, Clinic and Office
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (> 100K)
Grocery Store <45K
Supermarket > 45K
Food Service – Limited (under 2K)

CB - COMMUNITY BUSINESS
<i>Uses By Right</i>
Live/Work
Mixed-use Dwelling
Educational facilities
Service Business - Limited
Service Business - General
Animal Care - Kennel
Animal Care – Hospital / Clinic
Child Care, In Home - Minor
Child Care, In Home - Major
Child Care, Center - Minor
Child Care, Center - Major
Emergency Shelter
Entertainment, Indoor Recreation Facility
Lodging, Hotel / Motel
Medical Care, Clinic and Office
Mini Storage
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (> 100K)
Grocery Store <45K
Supermarket > 45K
Outdoor Sales, Limited
Automobile Service Repair
Automobile Service Station - Limited
Automobile Service Station - General

MUB - MIXED-USE BUSINESS
<i>Uses By Right</i>
Food Service – General (2K – 4K)
Food Service – Large-scale (over 4k)
Limited Industrial
Commercial and Public Parking Facility
Government Facility
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Educational facilities
Community Athletic Field
Outdoor Sales, Limited
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Developed Athletic Field or Stadium
Service Business - General
Animal Care – Hospital / Clinic
Entertainment, Outdoor Recreation Facility
Entertainment, Venue (1000+ maximum occupancy)
Entertainment, Amusement, Recreation—Other
Mini Storage
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Outdoor Sales
Bars and liquor stores
Automobile Service Repair
Automobile Service Station - Limited
Data Center

CB - COMMUNITY BUSINESS
<i>Uses By Right</i>
Food Service – Limited (under 2K)
Food Service – General (2K – 4K)
Food Service – Large-scale (over 4k)
Government Facility
<i>Uses requiring Administrative approval</i>
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Community Athletic Field
Entertainment, Venue (1000+ maximum occupancy)
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Limited Industrial
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Multi-dwelling Building (“Apartment”)
Urban Loft Building
Developed Athletic Field or Stadium
Assisted Living / Nursing Home
Entertainment, Outdoor Recreation Facility
Entertainment, Amusement, Recreation—Other
Outdoor Sales
Automobile Service Station – Large-scale
Data Center
Recycling Services
Transportation facilities
Nurseries, landscaping

MUB - MIXED-USE BUSINESS
<i>Uses requiring Board Approval (Conditional Use)</i>
Moderate Industrial
Impoundment Yards
Recycling Services
Nurseries, landscaping